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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

)
) **AMENDED EMERGENCY**
) **MOTION FOR**
) **TEMPORARY**
) **RESTRAINING ORDER**
) **(Including Request for Ex**
) **Parte / Expedited**
) **Consideration under Fed. R.**
) **Civ. P. 65(b))**

) **DATE:**
) **TIME:**
) **DEPT:**

**AMENDED EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER
(Including Request for Ex Parte / Expedited Consideration under Fed. R. Civ. P. 65(b))**

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER

Plaintiff Kostiantyn Mars respectfully moves this Court, pursuant to Federal Rule of Civil Procedure 65(b), for an immediate Temporary Restraining Order staying all enforcement actions in the removed state court matters and granting the comprehensive relief set forth below. This motion is filed concurrently with Plaintiff's Notice of Removal under 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651.

I. INTRODUCTION

Plaintiff faces imminent and irreparable harm from the continued enforcement of void orders issued by disqualified judges, including unlawful arrest warrants, fabricated criminal charges, wage garnishment, denial of access to the courts, and the ongoing international abduction of his minor son Max Mars. Immediate injunctive relief is required to preserve the status quo, protect Plaintiff's constitutional rights, prevent further extortion and racketeering under color of law, and restore custody of his son pending full federal review.

II. FACTUAL BACKGROUND

The facts supporting removal and this motion are set forth in detail in the concurrently filed Notice of Removal and are incorporated herein by reference. In summary:

- All orders in the removed cases were issued by disqualified judges (Stephen Lowney, Andrea Flint, James Towery) after lawful disqualification statements and are therefore **void ab initio** under California Code of Civil Procedure § 170.4(d).
- Plaintiff has been subjected to extortion of his 401(k) division, vehicle title, and minor child Max Mars's passport and identity documents through threats of incarceration and denial of hearings.
- Fabricated criminal proceedings (Case B2402220), multiple arrest and bench warrants, and unlawful DCSS wage garnishment (Case 200000002626999) have been used as instruments of racketeering and malicious prosecution.
- Plaintiff's son Max Mars remains unlawfully detained and at risk of international abduction to Ukraine under void orders issued by the Santa Clara Mafia Cartel.
- A vexatious litigant order issued on March 11, 2024 by disqualified Judge Lowney after his disqualification on February 20, 2024 is likewise void ab initio.

III. LEGAL STANDARD

A temporary restraining order is warranted where the movant shows: (1) a substantial likelihood of success on the merits; (2) a substantial threat of irreparable injury; (3) that the threatened injury outweighs any damage the injunction may cause the opposing party; and (4) that the injunction will not disserve the public interest. *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7 (2008). All four factors are satisfied here.

IV. ABSTENTION DOCTRINES DO NOT PRECLUDE EMERGENCY RELIEF

The doctrines of Younger abstention, the domestic relations exception, and Rooker-Feldman do not bar this Court from granting immediate injunctive relief. The state proceedings are infected by bad faith and extraordinary circumstances: void ab initio orders issued by disqualified judges, documented extortion under color of law, and the use of fabricated criminal charges as leverage to extort assets and restrict parental rights. No adequate remedy exists in the state forum due to the systemic corruption and concealment of disqualifications by the presiding judges. Federal intervention is not only permitted but required to prevent irreparable harm to Movant's constitutional rights and the safety and custody of the minor child.

IV. RELIEF REQUESTED

Plaintiff respectfully requests that the Court immediately enter a Temporary Restraining Order:

1. Accepting removal of all listed cases and assuming full jurisdiction.
2. Staying all enforcement actions, warrants and orders pending federal review.
3. Dismissing Criminal Case B2402220 with prejudice and expunging all related warrants and records including Bench warrant No. 002400020658 (08/21/2024), and Arrest warrant No. 2400025644 (10/23/2024).
4. Dismissing DCSS Case 200000002626999 in its entirety, vacating all fabricated arrears, and ordering immediate deletion of all negative credit reporting.
5. Declaring all orders and warrants issued in Cases 22FL003144 and 22DV000779 (including family bench warrant issued on June 17, 2024) void ab initio and permanently nullify them.
6. Authorizing immediate emergency withdrawal / release of Petitioner's 401(k) funds.
7. Issuing a final divorce decree (or bifurcation of marital status) in Case 22FL003144.
8. Restoring full legal and physical custody of minor child Max Mars to Plaintiff and directing the U.S. Department of Justice International Parental Kidnapping Unit to assist with safe return.
9. Granting name change: Kostiantyn Mars to Royce Mars (Case 24CV441024);
10. Issuing protective SSN/ID relief (new SSN to prevent further fraud).
11. Ordering return of Petitioner's vehicle VW Tiguan (CA plate 7ZND242).
12. Awarding treble damages under 18 U.S.C. § 1964(c) in the amount of \$750,000 for all property injuries caused by the unlawful DCSS wage garnishment, fabricated arrears, and related predicate acts of extortion and theft (as fully documented in Consolidated Evidence Binder - Exhibit A, Set 5, Exhibits A-49 through A-54, including the DCSS Wage Garnishment Summary Chart and Total Extortion and Theft Summary Chart), together with compensatory damages in the amount of \$250,000 and punitive damages in the amount of \$5,000,000 to punish and deter the egregious, malicious, and oppressive conduct of the racketeering enterprise operating under color of law.
13. Declaring the vexatious litigant pre-filing order issued on March 11, 2024 in Case No. 22FL003144 by disqualified Judge Stephen Lowney void ab initio under California Code of Civil Procedure § 170.4(d), vacating said order with prejudice, and directing the California Judicial Council and the Clerk of the Santa Clara County Superior Court to

1 immediately remove Plaintiff Kostiantyn Mars from the statewide Vexatious Litigant List
2 maintained pursuant to Code of Civil Procedure § 391.7.

3 14. In light of the documented pattern of racketeering and retaliation, threats of unlawful
4 incarceration, and systemic corruption within the Santa Clara County Superior Court,
5 Plaintiff respectfully requests that any hearing on the Emergency Motion for Temporary
6 Restraining Order or the Motion to Dismiss Criminal Case B2402220 be conducted
7 remotely by video with mandatory audio and video recording by the Court. This
8 safeguard is necessary to protect Plaintiff's safety, prevent further violations of due
9 process, and ensure independent federal oversight of the proceedings.

10 15. Plaintiff further requests that the Court grant him immediate access to the Court's
11 CM/ECF system or Electronic Submission Dropbox upon the opening of this case to
12 facilitate efficient case management.

13 16. Declare that the Judgment of Dissolution and Notice of Entry entered by the Santa Clara
14 County Superior Court on or about August 14, 2026, and all related orders and docket
15 entries that appeared after the state court's receipt of notice of removal on July 27, 2026,
16 are void ab initio under 28 U.S.C. § 1446(d);

17 17. Nullify and set aside, retroactive to September 13, 2022, all orders issued in the removed
18 state-court cases that were entered without jurisdiction or in violation of due process,
19 including arrest and bench warrants, restraining orders, custody orders, support orders,
20 coerced stipulations, garnishments and arrears, and any orders used to restrict contact
21 with the minor child or to seize or encumber financial or material assets;

22 18. Enjoin Defendants, the California Department of Child Support Services, and all persons
23 acting in concert with them from enforcing the void Judgment or related orders, including
24 by seeking, submitting, or enforcing any Qualified Domestic Relations Order (QDRO),
25 levy, garnishment, or other process against Plaintiff's 401(k) or other ERISA-qualified
26 retirement accounts;

27 19. Direct that any retirement plan administrator or recordkeeper that receives a QDRO or
28 similar order based on the August 14, 2026 Judgment or related post-removal orders shall
take no action to qualify, process, or distribute funds pursuant to such order pending
further order of this Court;

20. Consider and rule on this Emergency Motion on an ex parte or highly expedited basis
under Federal Rule of Civil Procedure 65(b) because of the immediate risk of irreparable
harm described herein.

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Respectfully submitted,

DATED: August 15, 2026


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Pro Se

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Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

) **PROPOSED ORDER**

) **GRANTING**

) **EMERGENCY**

) **TEMPORARY**

) **RESTRAINING ORDER**

) **DATE:**

) **TIME:**

) **DEPT:**

PROPOSED ORDER

GRANTING EMERGENCY TEMPORARY RESTRAINING ORDER

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- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

1 Upon consideration of Plaintiff Kostiantyn Mars's Emergency Motion for Temporary
2 Restraining Order filed concurrently with his Notice of Removal, and good cause appearing,
3 the Court hereby ORDERS as follows:

4 **IT IS HEREBY ORDERED** that:

- 5 1. The Court accepts removal of all listed state court matters and assumes full jurisdiction
6 over them pursuant to 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651:
7 - Criminal Case No. B2402220
8 - Domestic Violence Case No. 22DV000779
9 - Family Law / Divorce / Custody Case No. 22FL003144
10 - Name Change Case No. 24CV441024
11 - DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999
- 12 2. All enforcement actions, proceedings, and orders in the removed cases are immediately
13 STAYED pending further order of this Court.
- 14 3. Criminal Case No. B2402220 is DISMISSED WITH PREJUDICE. All related arrest
15 warrants, bench warrants, and criminal records arising therefrom are ordered expunged.
- 16 4. DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999 is
17 DISMISSED IN ITS ENTIRETY. All fabricated arrears are vacated, and all negative
18 credit reporting arising from this case shall be immediately deleted.
- 19 5. The Judgment of Dissolution and Notice of Entry entered by the Santa Clara County
20 Superior Court on or about August 14, 2026, and all related orders and docket entries that
21 appeared after the state court's receipt of notice of removal on July 27, 2026, are hereby
22 DECLARED VOID AB INITIO under 28 U.S.C. § 1446(d).
- 23 6. All orders issued in the removed state-court cases that were entered without jurisdiction
24 or in violation of due process are NULLIFIED and SET ASIDE, retroactive to September
25 13, 2022, to the extent necessary to restore the status quo and protect Plaintiff's rights.
- 26 7. Defendants, the California Department of Child Support Services, and all persons acting
27 in concert with them are ENJOINED from enforcing the void August 14, 2026 Judgment
28 or any related post-removal orders, including by seeking, submitting, or enforcing any
Qualified Domestic Relations Order (QDRO), levy, garnishment, or other process against
Plaintiff's 401(k) or other ERISA-qualified retirement accounts.

8. Any retirement plan administrator or recordkeeper that receives a QDRO or similar order based on the void Judgment or related post-removal orders shall take no action to qualify, process, or distribute funds pursuant to such order pending further order of this Court.
9. All orders issued in Cases 22FL003144 and 22DV000779 are hereby DECLARED VOID AB INITIO under California Code of Civil Procedure § 170.4(d) and are permanently NULLIFIED.
10. A final divorce decree (or bifurcation of marital status) shall be issued in Case No. 22FL003144.
11. Full legal and physical custody of the minor child Max Mars is restored to Plaintiff Kostiantyn Mars. The United States Department of Justice, International Parental Kidnapping Unit, is directed to assist with the safe return of Max Mars to Plaintiff's custody in Texas.
12. Plaintiff's 401(k) funds are immediately released for emergency hardship withdrawal.
13. Plaintiff's vehicle bearing California plate 7ZND242 shall be returned to him forthwith.
14. The name change is granted (Case 24CV441024): Kostiantyn Mars to Royce Mars.
15. Protective SSN/ID relief is granted as necessary to safeguard Plaintiff's identity.
16. Plaintiff is awarded treble damages under 18 U.S.C. § 1964(c) in the amount of Seven Hundred Fifty Thousand Dollars (\$750,000) for property injuries caused by the unlawful DCSS wage garnishment and related predicate acts of extortion and racketeering, as documented in Consolidated Evidence Binder – Exhibit A, Set 5, Exhibits A-53 and A-54. In addition, Plaintiff is awarded compensatory damages in the amount of Two Hundred Fifty Thousand Dollars (\$250,000) and punitive damages in the amount of Five Million Dollars (\$5,000,000).
17. The vexatious litigant pre-filing order issued on March 11, 2024 in Case No. 22FL003144 by disqualified Judge Stephen Lowney is hereby DECLARED VOID AB INITIO pursuant to California Code of Civil Procedure § 170.4(d). Said order is VACATED with prejudice. The California Judicial Council and the Clerk of the Santa Clara County Superior Court are DIRECTED to immediately remove Plaintiff Kostiantyn Mars from the statewide Vexatious Litigant List maintained pursuant to Code of Civil Procedure § 391.7 and to confirm compliance with this Court within seven (7) days of receipt of this Order.
18. Any hearing on this Motion or related motions shall be conducted remotely by video with mandatory audio and video recording under federal oversight to ensure transparency,

1 preserve the record, prevent further fraud on the court, and protect Plaintiff's
2 constitutional rights and physical safety.

3 19. Plaintiff is granted immediate access to the Court's CM/ECF system or Electronic
4 Submission Dropbox for future filings.

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6 IT IS SO ORDERED.

7 DATED: _____
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9 United States District Judge
10 Western District of Texas
11 Austin Division
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